



CHAPTER v.

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Southampton in connection with their tramway undertaking and for other purposes. A.D. 1911.
[31st March 1911.]

WHEREAS in pursuance of powers conferred upon them by the Southampton Corporation Tramways Acts 1877 to 1910 the mayor aldermen and burgesses of the borough of Southampton (in this Act called "the Corporation") have acquired and constructed and are working an extensive system of tramways in the borough and it is expedient to empower them to construct and work the additional tramways referred to in this Act and to empower them to extend their depôt at Portswood used for the purpose of their tramway undertaking:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

(a) For and in connection with the construction	£
of the tramways authorised by this Act -	12,490
(b) For the provision and erection of posts	
standards brackets conductors and other	
apparatus works and conveniences for the	
purpose of the tramways authorised by	
this Act - - - - -	2,680

[Price 6d.]

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A.D. 1911.

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| (c) For the purchase of lands for and for and in connection with the extension of the Portswood depôt of the Corporation | - | £ 8,000 |
| (d) For working capital in connection with the Corporation's tramway undertaking | - | 5,000 |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the fourteenth day of December nineteen hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Southampton Times* and *Hampshire Express* a local newspaper circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the revenue of the Corporation's tramway undertaking and on the borough fund and borough rate:

And whereas the said resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the eighth day of February nineteen hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the *Borough Funds Act 1903* have been observed:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the county of *Southampton* and for the town and county of the town of *Southampton* respectively and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Southampton Corporation Tramways Act 1911 and the Southampton Corporation Tramways Acts 1877 to 1910 and this Act may be jointly cited as the Southampton Corporation Tramways Acts 1877 to 1911.

Short and
collective
titles.

2. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (namely):—

Incorpora-
tion of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that the said section 19 shall be read and have effect as if the words “but nothing
“ in this Act contained shall authorise any local authority
“ to place or run carriages upon such tramway and to
“ demand and take tolls and charges in respect of the use
“ of such carriages” were omitted from that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpreta-
tion.

“The Act of 1897” and “the Act of 1910” mean respectively the Southampton Corporation Tramways Act 1897 and the Southampton Corporation Act 1910:

The expressions “the Corporation” “the borough” “the council” “the borough fund” “the borough rate” “the tribunal” and “statutory security” have the meanings assigned to them respectively by section 4 (Interpretation of terms) of the Act of 1910.

CONSTRUCTION OF TRAMWAYS AND EXTENSION OF DEPÔT.

4.—(1) Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels

Power to
make tram-
ways.

A.D. 1911. shown on the deposited plans and sections with all proper rails plates junctions turn-outs crossings passing places posts poles brackets wires waiting-rooms carriage-houses sheds depôts buildings engines works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 (Power to undertakers to alter position of pipes and wires) of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act will be situate in the borough and are—

Tramway No. 1 (4 furlongs 3·48 chains in length whereof 3 furlongs 0·64 chain will be single line and 1 furlong 2·84 chains will be double line) to be situate in the Avenue commencing by a junction with the existing tramway at a point 1·50 chains or thereabouts measured in a southerly direction from the intersection of the Avenue and Highfield Road and terminating in the Avenue at a point 0·40 chain or thereabouts measured in a southerly direction from the intersection of the Avenue and Alma Road at the boundary of the borough:

Tramway No. 2 (1 furlong 9·33 chains in length whereof 3·75 chains will be single line 9·50 chains will be inter-laced line and 6·08 chains will be double line) commencing by a junction with the existing tramway in the High Street at a point 5·21 chains or thereabouts measured in a southerly direction from the intersection of Bridge Street and the High Street passing along the High Street and the Town Quay and terminating on the Town Quay at a point 0·55 chain or thereabouts measured in a westerly direction from the intersection of Bugle Street and the Town Quay:

Tramway No. 3 (6 furlongs 7·12 chains in length whereof 5 furlongs 1·65 chains will be single line and 1 furlong 5·47 chains will be double line) commencing by a junction with tramway No. 2 on the Town Quay at a point 0·55 chain or thereabouts measured in a westerly direction from the intersection of Bugle Street and the Town Quay passing along the Western Esplanade and terminating therein at its intersection with Blechynden Street.

(2) Provided that notwithstanding anything shown on the deposited plans— A.D. 1911.

(a) So much of tramway No. 2 as shall be constructed in High Street and is shown as single line on the deposited plans shall be constructed as interlaced line in such a manner that a space of not less than nine feet six inches shall intervene between the outside of the footpath on each side of the road and the nearer rail of the line on the further side of the road :

(b) So much of tramway No. 2 as shall be situate between the termination of that tramway and a point 6·83 chains or thereabouts measured in a south-easterly direction from the termination shall be constructed in the manner indicated in red on the plan "A" signed in triplicate by the Right Honourable Alfred Emmott the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred :

(c) Tramway No. 3 at the termination thereof shall be constructed in the manner indicated in red on the plan "B" signed in triplicate by the said Alfred Emmott.

(3) One of each of the plans signed as aforesaid has been deposited in the Parliament Office of the House of Lords and one has been deposited in the Private Bill Office of the House of Commons and one has been deposited in the office of the town clerk of the borough and copies of the plans so deposited in the office of the town clerk certified by him to be true copies shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such plans.

5. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramways.

6. The tramways authorised by this Act and the works connected therewith shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the Southampton Corporation Tramways Acts 1877 to 1910 and of the enactments incorporated therewith and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramways Works to form part of tramway undertaking of Corporation.

A.D. 1911. and works as if they had formed part of the tramways and works authorised by those Acts. Provided that nothing contained in this section shall prevent any rescission revocation amendment or variation of the said byelaws and regulations.

Power to
take lands.

7. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the extension and enlargement of their tramway depôt at Portswood in the borough and the Corporation may on such lands when acquired make and maintain such carriage-houses depôts buildings engines works and conveniences as they may require for the purposes of their tramway undertaking but the Corporation shall not create or permit any nuisance on such lands.

Period for
compulsory
purchase of
lands.

8. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to
borrow.

FINANCE AND MISCELLANEOUS.

9.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay all money so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely):—

1.	2.	3.
Purpose.	Amount.	Period for repayment.
(a) For and in connection with the construction of the tramways authorised by this Act.	£ 12,490	Thirty years from the date or dates of borrowing.
(b) For the provision and erection of posts standards brackets conductors and other apparatus works and conveniences for the purpose of the tramways authorised by this Act.	2,680	Twenty years from the date or dates of borrowing.
(c) For the purchase of lands for and for and in connection with the extension of the Portswood depôt of the Corporation.	8,000	Fifty years from the date or dates of borrowing.
(d) For working capital in connection with the Corporation's tramway undertaking.	5,000	Ten years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of this Act and they shall repay any money borrowed under this subsection within such period (in this Act referred to as "the prescribed period") as may be prescribed by the said Board. A.D. 1911.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenue of their tramway undertaking and the borough fund and borough rate or either of those securities Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by section 80 (Power to use one form of mortgage for all purposes) of the Act of 1910.

10. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed as expenses incurred in carrying on the Corporation's tramway undertaking. Expenses of execution of Act.

11. The following sections of the Act of 1897 and of the Act of 1910 shall with any necessary modifications and subject as regards mortgages granted under the provisions of section 80 (Power to use one form of mortgage for all purposes) of the Act of 1910 to the provisions of that section extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):— Application of provisions of Acts of 1897 and 1910.

The Act of 1897.

- Section 27 (Provisions as to mortgages);
- Section 34 (Power to borrow under Local Loans Act 1875);
- Section 36 (Protection of lenders from inquiry); and
- Section 40 (Application of money borrowed):

The Act of 1910.

- Section 19 (Correction of errors &c. in deposited plans and book of reference);
- Section 21 (Provisions as to compensation);
- Section 22 (Costs of arbitration &c. in certain cases);
- Section 23 (Power to purchase additional lands by agreement);

A.D. 1911.

Section 24 (Persons under disability may grant easements
&c.);

Section 25 (Power to retain sell &c. lands);

Section 26 (Proceeds of sale of surplus lands);

Section 28 (Temporary stoppage of streets);

Section 73 (Section 234 of Public Health Act not to apply);

Section 75 (Mode of payment off of money borrowed);

Section 76 (Sinking fund);

Section 77 (Corporation not to regard trusts);

Section 104 (Application of section 265 of Public Health Act 1875); and

Section 107 (Powers of Act cumulative):

Provided that in the application of the said section 21 that section shall be read and have effect as if the first day of January nineteen hundred and eleven were therein mentioned instead of the first day of January nineteen hundred and ten.

Costs of Act.

12. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the revenue of their tramway undertaking or out of the borough fund or out of money to be borrowed under this Act for that purpose.

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